

IDW legal review brief

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IndiaDentalWorld (IDW) is a pre-launch dental directory and booking platform for India. We want a fixed-fee review of the prototype's compliance claims, company set-up and policies before any real patient data is collected.

What IDW is

Patients search for verified dentists across India, compare clinics and book on the clinic's profile. Clinics, dental labs, product vendors and dental institutes can register and log in. Revenue comes from booking commission (5-10%), clinic subscriptions (₹999-2,999 a month) and, later, labelled sponsored placements and brand partnerships. No real patient data has been collected yet. Everything below is prototype design intent, not live behaviour.

Questions for counsel

Each row is something the prototype says or does, and the question we need answered before launch. Please mark each as clear, change needed, or high risk.

Area	What the prototype does	Question for counsel
Verified badge	Shows "DCI Verified" after our staff check a clinic's registration with the state dental council.	Is this wording safe? What checks must we do, how often, and what is our liability if a registration lapses?
Paid placement	Up to 2 labelled "Sponsored" clinic cards per search page; ranking otherwise by distance, verification, profile completeness and reviews.	Do DCI or NMC advertising rules allow a clinic to pay for placement? What must we disclose about ranking under the Consumer Protection (E-Commerce) Rules, 2020, and ASCI guidelines?

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Booking commission	Plan to take 5–10% of a booking; booking sits on the clinic profile.	Does a percentage fee on a patient booking breach professional-conduct rules on fee-splitting or referral payments? Is a flat subscription safer?
WhatsApp lead fee	Plan to charge ₹30–80 per lead routed to a clinic.	Same question as commission: is a per-lead fee treated as a referral payment?
Wording	We removed "top", "best" and "most trusted", and use "Verified clinics near you".	Please confirm this wording is acceptable and whether "Verified" could read as an endorsement.
Treatment prices	Clinic pages show prices as "indicative only".	Are there rules on publishing treatment prices? Is the disclaimer enough?
Reviews	Only patients with a completed appointment can review; clinics cannot edit, hide or pay for reviews; clinics can reply publicly.	What is our status as an intermediary under the IT Rules, 2021 and our takedown duties? What do the CCPA guidelines on fake reviews require? How should we handle defamation complaints?
Patient data	Consent checkbox, location only on opt-in, no stored search history without consent, "delete my data", Grievance Officer link, data hosted in India.	Please review our notice and consent wording against the DPDP Act and Rules, 2025, including health data, retention periods, breach notification and withdrawal of consent.
Children	Parents may add family members.	What does the DPDP Act require for children's data and parental consent?
AI features	Search text may be processed by an AI model hosted outside India.	Is this a cross-border transfer needing disclosure or other steps under the DPDP Act?

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Marketing	Newsletter with an unchecked consent box; WhatsApp confirmations.	What opt-in records do we need under DPDP, WhatsApp Business and telecom marketing rules?
Guides and health content	Articles carry the author's qualification; emergency line (112) and a "no medical advice" notice in the footer.	Are these notices enough? Are there rules on health content or on dentists writing for a platform?
Clinical Establishments Act	We list clinics but do not run them.	What do we need to verify about a clinic's registration, and are we exposed if a listed clinic is not registered?
Dental labs, vendors, institutes	Each can register and list.	What claim checks do we need for devices and materials (CDSCO, ASCI) and for course accreditation claims (DCI approval)?
Clinic subscriptions	Free listing, paid plans ₹999–2,999 a month, "verified within 48 hours".	Is the 48-hour promise a binding commitment? What should the plan terms, GST invoicing and refund wording say?

Company set-up and policies

These are not yet in place, and we need your help to complete them:

- Incorporate the company (the footer's CIN is a placeholder), GST registration and the KYC for Razorpay payments.
- Draft the privacy policy, terms of use, DPDP notice, refund policy, advertising and sponsorship policy and the grievance page.
- Appoint a Grievance Officer and set the response process.
- Agreements for clinics, labs, vendors and institutes: listing terms, verification and sponsorship.

What we ask you to quote

Please send a fixed fee and a timeline for three pieces of work:

1. A written answer to every row in the table above.
2. Company incorporation and registrations.
3. The policies and agreements listed above.

Please also tell us whether you have advised a health-tech or marketplace company before, and who would work on this.

Materials we will share

- Clickable HTML prototypes: homepage, search results, clinic profile and clinic registration.
- The revenue map showing each placement and its labelling.
- This brief, with space for your answers.